



DEPARTMENT OF PUBLIC SAFETY GEORGIA STATE PATROL

PURSUIT CRITIQUE

TROOPER NAME – TFC Jonathan Day #119

Work Assignment: Troop/Division - A; Post/Unit – 5-Dalton

INCIDENT REPORT # DPS00163353

Related Crash Reports: _____ ; _____ ; _____

P.I.T. Involved: No

S.C.R.T. Involved: No

Special Investigations Unit Involved: No

Use of Force Involved: No

MEETING

1. Document the date, time and location of the pursuit critique meeting with the involved trooper.

Date: 5/8/2024

Time: 1245 Hours

Location: Post 5 - Dalton

2. List all personnel present at the meeting by name and rank. Include the trooper, an NCO in whose territory the pursuit was terminated, and the trooper's immediate supervisor.

Personnel present: Lieutenant Tim Nichols #36, SGT Ben Boyd #357 and TFC Jonathan Day #119

INITIATION

1. Provide the date and time the trooper became involved in the pursuit.

Date: 4/19/2024

Time: 2251 Hours

2. Explain the circumstances that led to the trooper's involvement in the pursuit.

On 4/19/2024 at approximately 2251 hours, TFC Day was patrolling GA 52 when he observed a green BMW traveling eastbound at a high rate of speed. TFC Day confirmed the speed via RADAR at 76 miles per hour and proceeded to stop the vehicle. When TFC Day activated his emergency equipment, the driver of the BMW refused to stop and a pursuit ensued.

3. If trooper's involvement was the result of a request from another agency, provide details regarding the request.

☒ N/A

If Yes, explain:

4. List the number and identity of other agencies and officers involved in the pursuit.

☒ N/A

If needed, list:

5. If other occupants were in the patrol vehicle, identify them and state their reason for being in the vehicle.

☒ N/A

If Yes, list:

6. Did the trooper take appropriate safety precautions?

☒ Yes

☐ No

If no, explain:

7. Did the trooper eliminate distractions such as FM radio noise?

☒ Yes

☐ No

If no, explain:

COMMUNICATION

1. If the reporting trooper initiated the pursuit by means of observing a violation and attempting a traffic stop, explain the communication that took place between the trooper and the CEO.

☐ N/A

If Yes, explain: TFC Day contacted the Troop A Communications Center by radio and advised them that he was in a pursuit. TFC Day provided his location, direction of travel and a description of the vehicle. Dispatcher Cochran received this information and created a CAD call for the pursuit.

2. Did the trooper relay pertinent information to the CEO including:

- Location and direction of travel.
- Description of the pursued vehicle.
- Number and description of occupants.
- Information regarding the use of firearms, threat of force, or other hazard.
- Options for terminating the pursuit.
- Observed danger to public safety.
- Any need for assistance.

☒ Yes

☐ No

If no, explain:

3. Explain any communication that took place between the CEO and other law enforcement agencies or officers in the area.

☐ N/A

Explain: Once the pursuit initiated, Dispatcher Cochran cleared the radio for emergency traffic before conducting a broadcast of the pursuit to all Troop A Troopers.

Dispatcher Gervais contacted the Whitfield County 911 Center by telephone to advise them of the pursuit and to request assistance.

4. If the reporting trooper became involved in the pursuit at the request of another agency, explain any communication that took place between the trooper and another officer of the requesting agency. Give details of communication between the CEO and the requesting agency regarding the location, direction of travel, nature of the offense, any pending warrants, and details of erratic driving behavior illustrating the potential danger to the public if the suspect is not immediately apprehended.

☒ N/A If Yes, explain:

5. Did the trooper articulate his observations?

☒ Yes ☐ No If no, explain:

6. At the conclusion of the pursuit, did the trooper advise the CEO immediately, so other units would be familiar with the location to offer assistance, or slow in an effort to reduce the likelihood of further risk of injury to either a trooper or a member of the general public?

☒ Yes ☐ No If no, explain:

7. Discuss any needed areas of improvement with the CEO.

☒ N/A If Yes, explain:

PURSUIT

1. Describe the route the pursuit traveled, its duration and distance.

Describe: The pursuit initiated on Airport Road and traveled south before the violator turned right onto Hill Road. The pursuit traveled west on Hill Road and turned right onto Eastbrook Road. The pursuit traveled on Eastbrook Road, crossed Riverbend Road and onto Antioch Road. The pursuit continued on Antioch Road, crossed Abutment Road onto Brickyard Road. The violator then turned right onto South Dixie Highway traveling northbound. The pursuit continued north on South Dixie Highway before turning right onto GA 52 East. The violator continued eastbound and then turned left onto South Glenwood Avenue. The pursuit traveled northbound on South Glenwood Avenue then made a right turn onto Martin Luther King Jr. Boulevard. The pursuit terminated on Martin Luther King Boulevard when TFC Day lost visual contact. The pursuit traveled approximately 9.1 miles and lasted 8 minutes and 13 seconds.

2. Were the trooper's actions during the pursuit objectively reasonable?

☒ Yes ☐ No If no, explain:

3. If the pursuit traveled into another post's territory, explain whether the initiating trooper yielded to a trooper whose territory the pursuit was in.

☒ N/A If Yes, explain:

4. If the initiating trooper yielded the primary position to another unit, explain whether he proceeded to the termination point of the pursuit to provide guidance and information for the arrest of the violator.

☒ N/A If Yes, explain:

5. Explain if there were any factors during the pursuit that indicated the possible commission of a felony.

☐ N/A If Yes, explain: The violator's actions during the pursuit would have supported a charge of Felony Fleeing and Attempting to Elude.

6. Did the trooper articulate his observations?

☒ Yes ☐ No If no, explain:

7. Did the trooper practice commentator driving?

☒ Yes ☐ No If no, explain:

8. Did the trooper remain calm and professional during the pursuit?

☒ Yes ☐ No If no, explain:

DRIVING SKILLS

1. Did the trooper use due caution when operating his vehicle during the pursuit?

☒ Yes ☐ No If no, explain:

2. Were the driving skills/techniques initiated appropriately?

☒ Yes ☐ No If no, explain:

3. Were the driving skills/techniques appropriate during the pursuit?

☒ Yes ☐ No If no, explain:

4. Were the driving skills/techniques appropriate during termination?

☒ Yes ☐ No If no, explain:

5. Did the trooper appear to experience adrenalin rush, tunnel vision, or any other internal/external factors?

☒ No If Yes, explain:

6. Did the trooper get into the danger zone due to adrenalin rush, tunnel vision, or other factors?

☒ No If Yes, explain:

EQUIPMENT

1. Were the blue lights and siren in operation during the entire pursuit?

☒ Yes ☐ No If no, explain:

2. If the patrol car was equipped with wig-wag headlights, were they in operation during the entire pursuit?

☒ Yes ☐ No If no, explain:

3. Was the in-car camera working properly?

☒ Yes ☐ No If no, explain:

4. Was the trooper's microphone working properly?

☒ Yes ☐ No If no, explain:

TERMINATION

1. Did the trooper continue the pursuit to a conclusion? If not, explain the reasons.

☒ Yes ☐ No If no, explain:

2. Was there a good probability of the suspect's arrest at a later time because of positive identification?

☒ N/A If Yes, explain:

3. Articulate attempts taken by the trooper to utilize pursuit termination techniques, such as tire deflating devices, roadblocks, P.I.T. maneuver, and trooper discretion.

☒ N/A Explain:

4. Expound on safety precautions utilized by the trooper during and after the pursuit.

☐ N/A Explain: TFC Day utilized all his emergency equipment throughout the pursuit and exercised due caution at intersections while commenting and communicating the violator's actions.

5. Articulate the existing traffic conditions during the pursuit, realizing the conditions may differ at various times during the pursuit.

Explain: The pursuit occurred during nighttime hours with clear skies and dry road surface. The traffic conditions on all roads traveled during the pursuit would be described as light.

6. Address whether there are any conditions that would create additional danger to the public by continuing the pursuit.

☐ N/A If Yes, explain: TFC Day properly discontinued the pursuit once visual contact was lost. This decision was reasonable, within the guidelines of DPS policy and prevented further risk of harm to the public.

7. Address whether there were any conditions that necessitated the pursuit being brought to an immediate conclusion and describe the conditions.

☐ N/A If Yes, explain: Once TFC Day lost visual contact with the suspect, he discontinued the pursuit. His actions were in compliance with DPS policy.

8. Establish whether the violator was an immediate threat to the trooper, the public or themselves.

☐ N/A If Yes, explain: The suspect fled at high speeds, drove on the wrong side of the road, failed to stop for numerous traffic control devices and improperly passed other traffic. The suspect posed a great risk to himself, TFC Day and the public.

9. Outline whether the use of deadly force was justified and if so, why it was justified.

☒ N/A If Yes, explain:

10. Establish whether the method of termination was reasonable based on the facts gathered during the pursuit, and state those facts.

☒ N/A If Yes, explain:

11. If there were any injuries, state who received them, the type and severity.

☒ N/A If Yes, explain:

12. If there was a fatality, provide basic facts surrounding the circumstances.

☒ N/A If Yes, explain:

13. Address any damage to vehicles.

☒ N/A If Yes, explain:

TROOPER'S ABILITIES AND EXPERIENCE

1. Prior pursuits (compare if appropriate).

☐ N/A If Yes, explain: TFC Day has been involved in numerous pursuits during his career as a Georgia State Trooper.

2. Past use of techniques and high speed driving.

☐ N/A If Yes, explain: TFC Day has received E.V.O.C. and Advanced E.V.O.C. Training.

ISSUES ADDRESSED

1. Positives.

☐ N/A If Yes, explain: TFC Day utilized all his emergency equipment throughout the pursuit and exercised due caution at intersections while commentating and communicating the violator's actions.

2. Areas for improvement.

☒ N/A If Yes, explain:

3. Other considerations.

☒ N/A If Yes, explain:

RESPONSE FROM TROOPER OR SUPERVISOR

1. Allow trooper and supervisor an opportunity to respond or add comments.

☒ N/A If Yes, explain:

CORRECTIVE ACTION TAKEN

1. Describe any corrective action taken as a result of the trooper's actions during the pursuit.



N/A

If Yes, explain:

Lt. T. L. Nichols #36
Reviewing Officer

Lt. T. L. Nichols #36

5/23/2024

Date